

25CV04359 Mario Giron, et al. v. The Harbor Restaurant

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-08-12

Motion: 1. Plaintiffs' Motion for Monetary Discovery Sanctions against Defendant Gonzalo Del Pino and his Attorney of Record John Thyne (2) Plaintiffs' Motion to Compel Defendant The Harbor Restaurant to Serve Verified Answers to Form Interrogatories Without Ob

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Tentative Ruling: Mario Giron, et al. v. The Harbor Restaurant

Case Number

25CV04359

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 08/12/2026 - 10:00

Nature of Proceedings

1. Plaintiffs' Motion for Monetary Discovery Sanctions against Defendant Gonzalo Del Pino and his Attorney of Record John Thyne (2) Plaintiffs' Motion to Compel Defendant The Harbor Restaurant to Serve Verified Answers to Form Interrogatories Without Ob

Tentative Ruling

For Plaintiffs Mario Giron and Raquel Viridiana Giron: Scott A. Meehan, Alfonso & Berriz PC

For Defendants The Harbor Restaurant, Santa Barbara Harbor Restaurant, Inc., John J. Thyne III, Olesya Thyne, Eugenio "Gene" Sanchez, Carolina Jimenez, Gonzalo Del Pino, and Rich Hollowell: John J. Thyne III, Thyne Taylor Fox Howard, LLP

RULING

For the reasons stated herein:

Plaintiffs' motion for monetary discovery sanctions against Defendant Gonzalo Del Pino and his attorney of record John Thyne is granted in the reduced amount of \$3,352.50, payable by Del Pino and his attorney of record Thyne, Taylor, Fox, Howard, LLP, jointly and severally, to Plaintiffs' counsel no later than September 2, 2026.

Plaintiffs' motion to compel Defendant The Harbor Restaurant to serve verified responses, without objections, and request for monetary sanctions is granted as follows:

Defendant The Harbor Restaurant shall provide verified responses to Plaintiffs' form interrogatories, set one, without objections, no later than August 26, 2026.

Monetary sanctions are awarded in the reduced amount of \$2,275.00, payable by The Harbor Restaurant and its attorney of record Thyne, Taylor, Fox, Howard, LLP, jointly and severally, to Plaintiffs' counsel no later than September 2, 2026.

Plaintiffs allege they were injured due to the negligence of Defendant; Plaintiffs were served food and became violently ill.

The Pretrial Date of 11/4/26 at 11:30 am is confirmed; all trial documents are due one week in advance.

First witness on 11/5/26.

Final CMC 9/16/26 to discuss expert witness depositions.

MSC 10/9/26 at 8:30 in #5 via Zoom.

Background

On July 11, 2025, Plaintiffs Mario Giron and Raquel Viridiana Giron (collectively, Plaintiffs) filed a complaint against Defendant The Harbor Restaurant (the Restaurant), alleging one cause of action for negligence.

On September 8, the Restaurant filed a demurrer on the grounds that the complaint fails to allege facts constituting a cause of action and is uncertain. That demurrer was calendared for a hearing on November 12.

On November 6, Plaintiffs filed a first amended complaint (the FAC), alleging the same cause of action for negligence against the Restaurant, and adding Defendants John Thyne III (J Thyne), Olesya Thyne (O Thyne), Eugenio "Gene" Sanchez (Sanchez), Carolina Jimenez (Jimenez), Gonzalo Del Pino (Del Pino), Rich Hollowell (Hollowell), and Santa Barbara Harbor Restaurant, Inc., (SBHR).

On November 12, after a hearing, the Court made the following ruling on the Restaurant's demurrer to Plaintiff's original complaint:

"On July 11, 2025, Plaintiffs filed their original complaint in this action. On September 8, Defendant filed a demurrer to the single cause of action in the complaint. No opposition was filed to the demurrer, but on November 6, Plaintiffs filed an untimely first amended complaint. (See Code Civ. Proc., § 472, subd. (a) [amended complaint must be filed on or before opposition to demurrer due].) The Courts deems the filing of the first amended complaint a concession that the demurrer to

the original complaint has merit in some respect, that the Courts has sustained that demurrer with leave to amend, and that the first amended complaint is filed and served by electronic service based upon such leave to amend. Defendant's time to respond to the first amended complaint shall be computed from the electronic service date of November 12, 2025."

As alleged in the FAC, which is the operative pleading:

J Thyne, O Thyne, Sanchez, and Jimenez, who were fictitiously named in the original complaint as, respectively, Doe 1, Doe 2, Doe 3, and Doe 4, own the Restaurant. (FAC, ¶¶ 4 & 10.) Del Pino, fictitiously named in the original complaint as Doe 5, is the Executive Chef of the Restaurant. (FAC, ¶¶ 5 & 10.) Hollowell, fictitiously named as Doe 6 in the original complaint, is the Restaurant's General Manager. (FAC, ¶¶ 6 & 10.) SBHR, fictitiously named in the original complaint as Doe 7, holds an ownership interest in the Restaurant. (FAC, ¶¶ 7 & 10.)

In 2024, the Restaurant began unpermitted construction and mold remediation, and was shut down by Building and Safety. (FAC, ¶ 9.) In addition, a whistle blower reported that the Restaurant had a broken water heater that would have provided hot water to maintain sanitary conditions, and a vermin problem. (Ibid.) The Santa Barbara County Department of Environmental Health Services also shut the Restaurant down. (Ibid.)

On November 2, 2024, Defendants caused or allowed contaminated food to be served to Plaintiffs for consumption. (FAC, ¶ 11.) In particular, Plaintiffs became violently ill after they each ate the Green Salad with Salmon, a contaminated dish of food that was served to them at the Restaurant. (Ibid.) As a result, Plaintiffs suffered injury and incurred medical and other expenses. (FAC, ¶ 12.)

On April 14, 2026, Defendants answered the FAC with a general denial and 12 affirmative defenses.

On May 6, 2026, Plaintiffs filed the present motion for discovery sanctions against Del Pino and his attorney of records for failure to appear at deposition and refusing to pay the associated Court reporter fees.

Del Pino has not filed opposition or any other response to the motion.

On May 8, 2026, Plaintiffs filed the present motion to compel the Restaurant to serve verified answers, without objections, to Form Interrogatories; request for monetary sanctions.

The Restaurant has not filed opposition or any other response to the motion.

Analysis

Motion for Discovery Sanctions

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.)

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for

an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

"If a motion under subdivision (a) is granted, the Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, subd. (g)(1).)

"To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the Court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The Court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The Court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the Court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).)

Plaintiffs seek monetary sanctions due to Del Pino's failure to appear at his properly noticed deposition and refusal to pay the costs associated with his non-appearance.

Plaintiffs' counsel declares:

"On March 12, 2026, Plaintiffs served Defendant Del Pino with a Notice of Deposition to take place in-person on March 24, 2026." (Meehan decl., ¶ 3 & Exh. 1.)

"Defendant Del Pino did not serve any objection to the Notice of Deposition." (Meehan decl., ¶ 4.)

"On March 24, 2026, I waited for Mr. Del Pino to appear for his in-person deposition. While waiting for Mr. Del Pino to arrive, I called Mr. Del Pino's attorney, John Thyne. A female answered the call at Mr. Thyne's office and reported that he was not available. I told her that we were waiting for him and his client at the deposition and to call me ASAP. No one from Mr. Thyne's office returned my call that day or thereafter." (Meehan decl., ¶ 5.)

"The Court reporter and I waited 30 minutes for Mr. Del Pino but neither he nor his attorney appeared." (Meehan decl., ¶ 6.)

"Magna Legal Services billed my office \$1,077.50 for the Court reporter that appeared for Mr. Del Pino's deposition." (Meehan decl., ¶ 7 & Exh. 2.)

"On April 28, 2026, I emailed Mr. Thyne requesting reimbursement for the Magna invoice." (Meehan decl., ¶ 8 & Exh. 3.)

"Two (2) minutes later, Mr. Thyne responded to my email stating 'Please file a motion. We will need to consider whether an email was proper service for a deposition.'" (Meehan decl., ¶ 9.)

The Court has reviewed the deposition notice, as well as the manner of service, and finds that Plaintiffs complied with the requirements of notice and service. Del Pino simply failed to appear, and his attorney failed to give any reason for the non-appearance or the refusal to pay the Court reporter fees. There are no circumstances here that make the imposition of sanctions unjust. Monetary sanctions are appropriate.

Plaintiffs' counsel has provided the invoice from the Court reporter in the amount of \$1,077.50. Plaintiff's counsel declares that his billing rate is \$650.00 per hour and that he spent 2.5 hours waiting at the deposition, attempting to meet and confer with Del Pino's attorney, and preparation of the current motion. In addition, Plaintiffs' counsel anticipates an additional 1.5 hours reviewing opposition and preparing a reply brief, and another 1 hour preparing for and appearing at the hearing on the motion. As Del Pino did not oppose the motion, the time for review of an opposition and preparation of a reply will not be allowed. The one hour to prepare for and appear at the hearing will be allowed. As such, the motion will be granted in the reduced amount of \$3,352.50, payable by Del Pino and his attorney of record, jointly and severally, to Plaintiffs.

Motion to Compel Responses to Form Interrogatories; Request for Sanctions

Code of Civil Procedure, section 2030.010 provides, "(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial."

"Within 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party, unless on motion of the propounding party the Court has shortened the time for response, or unless on motion of the responding party the Court has extended the time for response." (Code Civ. Proc., § 2030.260, subd. (a).)

"If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply:

"(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The Court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

"(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

"(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

"(b) The party propounding the interrogatories may move for an order compelling response to the interrogatories.

"(c) The Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the Court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the Court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2030.290.)

Plaintiffs' counsel declares:

"On November 6, 2025, Plaintiffs served Defendant The Harbor Restaurant with Form Interrogatories." (Meehan decl., ¶ 3 & Exh. 1.) "The statutory deadline for responses to the Form Interrogatories was December 8, 2025." (Ibid.)

"Defendant The Harbor Restaurant has never served any response to the Form Interrogatories." (Meehan decl., ¶ 4.)

"On April 7, 2026, I sent an email to John Thyne, attorney for all Defendants including The Harbor Restaurant, requesting verified responses without objection within then (10) days." (Meehan decl., ¶ 5 & Exh. 2.)

"On April 7, 2026, Mr. Thyne responded to my email by his email stating: 'Please forward the requests.' " (Meehan decl., ¶ 6 & Exh. 2.)

"On April 7, 2026, in response to Mr. Thyne's request, I immediately emailed a copy of the November 6, 2025, Form Interrogatories to Mr. Thyne." (Meehan decl., ¶ 7 & Exh. 2.)

"On April 20, 2026, I spoke by telephone to an assistant in Mr. Thyne's office and requested to schedule a telephone call with Mr. Thyne. I provided my cell number and the assistant reported to me that Mr. Thyne would call me the following date at 11:45 a.m." (Meehan decl., ¶ 8.)

"I never heard back from Mr. Thyne and have never received responses to the Form Interrogatories." (Meehan decl., ¶ 9.)

The Restaurant will be ordered to respond to the Form Interrogatories, without objections. Further, the Restaurant and its attorney of record will be ordered to pay monetary sanctions to Plaintiffs for failing to respond to the form interrogatories and abusing the discovery process. There are no circumstances that make the imposition of the sanctions unjust.

Plaintiffs' counsel declares that his billing rate is \$650.00 per hour and that he spent 2.5 hours attempting to meet and confer with the Restaurant's attorney, and preparation of the current motion. In addition, Plaintiffs' counsel anticipates an additional 1.5 hours reviewing opposition and preparing a reply brief, and another 1 hour preparing for and appearing at the hearing on the motion. As the Restaurant did not oppose the motion, the time for review of an opposition and preparation of a reply will not be allowed. The one hour to prepare for and appear at the hearing will be allowed. The amount of monetary sanctions in connection with this motion will be \$2,275.00.

Judges

Judge Thomas Anderle

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